

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201411225	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/02/2014 3:10 AM	Location of Incident: § 87(2)(b)		18 Mo. SOL 5/2/2016		Precinct: 114
Date/Time CV Reported Tue, 11/04/2014 1:06 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 11/04/2014 1:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM John Tamm	10000	942595	114 PCT
2. POM Cesar Pazmino	21167	941290	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Tamm	Abuse: PO John Tamm threatened to issue summons to § 87(2)(b)	A . Exonerated
B . POM John Tamm	Abuse: PO John Tamm threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Cesar Pazmino	Abuse: PO Cesar Pazmino threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Cesar Pazmino	Abuse: PO Cesar Pazmino refused to provide his name and/or shield number to § 87(2)(b)	D . Unsubstantiated
E . POM John Tamm	Abuse: PO John Tamm refused to provide his name and/or shield number to § 87(2)(b)	E . Unsubstantiated

Case Summary

- At approximately 3:10 am on November 2, 2014, PO Cesar Pazmino and PO John Tamm of the 114th Precinct responded to a 911 call reporting that the heat in the caller's residential building had been turned off. PO Pazmino and PO Tamm responded and spoke with the building's superintendent § 87(2)(b). The officers asked § 87(2)(b) to show them the boiler, and when he refused PO Tamm threatened to issue him a summons (**Allegation A**). § 87(2)(b) again refused and PO Tamm and PO Pazmino each threatened to arrest him (**Allegations B and C**). § 87(2)(b) eventually complied and was not summonsed or arrested. Before the officers left, he asked PO Pazmino and PO Tamm for their names and shield numbers, and they allegedly refused to provide them to him (**Allegations D and E**).

Mediation, Civil, and Criminal Histories

- This complaint was deemed suitable for mediation. Investigator Kulig offered mediation in a phone conversation on November 5, 2014 but § 87(2)(b) rejected mediation § 87(2)(b) [REDACTED]

Civilian and Officer CCRB Histories

- PO Pazmino has been a member of the NYPD for eight years and has been a subject in three other cases, with no substantiated allegations (encl. 1-A). § 87(2)(g) [REDACTED]
- PO Tamm has been a member of the NYPD for eight years and has been a subject in six other cases with no substantiated allegations (encl. 1-B). In cases #201115585 and #201403044 he was the subject of two alleged threats of arrest. Those allegations were both unsubstantiated. In case #201214126 he was the subject of an alleged threat of summons, which was also unsubstantiated.
- This is § 87(2)(b)'s first complaint with the CCRB.

Findings and Recommendations

Allegation A—PO John Tamm threatened to issue summons to § 87(2)(b)

Allegation B—PO John Tamm threatened to arrest § 87(2)(b)

Allegation C—PO Cesar Pazmino threatened to arrest § 87(2)(b)

§ 87(2)(b) maintained that he was awakened in his apartment at approximately 3:10 am by the knocking of PO Pazmino and PO Tamm. When he answered his door the two officers explained to him that a resident had complained that the heat was off. They asked § 87(2)(b) to show them the boiler of that building and when he refused, PO Tamm threatened to issue him a summons. § 87(2)(b) refused because he was upset by being awakened at that hour and because he knew the boiler to be on and in working order. PO Pazmino and PO Tamm each threatened to arrest § 87(2)(b). § 87(2)(b) eventually led the officers to the boiler room where he demonstrated that the boiler was on.

PO Tamm did not recall the incident. His memo book entries, however (encl. 6-F) confirm that he responded.

PO Pazmino stated that he and PO Tamm received a report of an illegal eviction. When they arrived on scene, the resident told them there was no heat. PO Pazmino found that the radiator was cold. The complainant provided them with the address of the building's superintendent.

When § 87(2)(b) answered the door, the officers asked if the building's heat was on. § 87(2)(b) responded that it was. PO Pazmino asked § 87(2)(b) to show them the boiler, and § 87(2)(b) refused saying that he was sleeping. PO Pazmino informed § 87(2)(b) that a resident had complained that there was no heat in his apartment. He explained that until § 87(2)(b) could prove otherwise, this would be considered an illegal eviction, which was a summonsable or arrestable offense depending on the decision of the acting patrol supervisor. PO Pazmino was not aware of the temperature on the night of the incident but recalled that it was a cold enough to necessitate his wearing a jacket.

PO Pazmino asked § 87(2)(b) again to show him and PO Tamm the boiler and reminded him that as the superintendent of the building it was his responsibility to do so. § 87(2)(b) eventually agreed. PO Pazmino observed that there was one boiler for the building, which was on a timer and was, at the time of the incident, set for approximately 60 or 65 degrees and within lawful guidelines.

NY Administrative code 27-2029 requires that during the period from October 1 through May 31, centrally-supplied heat be provided so as to maintain an indoor temperature of at least 68 degrees between 6 am and 10 pm, and an indoor temperature of at least 55 degrees between 10 pm and 6 am (encl. 10A-D). § 87(2)(g) according to Weather Underground, it was 43 degrees outside within the zip code that the location lies, and within an hour of the incident. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A, B, and C** be closed as **Exonerated**.

Allegation D—PO John Tamm refused to provide his name and shield number to § 87(2)(b)

Allegation E—PO Cesar Pazmino refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) maintained that when he initially refused to show the boiler to PO Pazmino and PO Tamm they asked him for his identification. Before he entered his apartment to retrieve his identification, he asked both officers for their "names and IDs." He maintained that PO Tamm said, "Yes, we'll give it to you" and that PO Pazmino acknowledged this statement by nodding his head up and down. However, the officers did not provide their names and shield numbers at that time. § 87(2)(b) maintained further that at no point during the remainder of his interaction with PO Pazmino and PO Tamm did either of them ever provide his name or shield number to him. He stated that he felt afraid to ask them a second time for identifying information.

PO Tamm did not recall this incident. PO Pazmino did not recall if § 87(2)(b) ever requested his or PO Tamm's name, shield number, or any other identifying information. He did not recall if he or his partner provided their names or shield numbers to § 87(2)(b). PO Pazmino stated, however, that he wore his shield in a visible location on the outermost garment he wore at the time of the incident.

Therefore, it is recommended that **Allegations D** and **E** be closed as *Unsubstantiated*.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date